



## CHAPTER 50.

An Act to amend the law with respect to customs  
in the Isle of Man. [6th August 1947.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) In lieu of the duties imposed on tobacco by section Tobacco. four of the Act of 1943, there shall, until the first day of August, nineteen hundred and forty-eight, be payable, on the removal or importation into the Isle of Man of tobacco of the descriptions specified in the first column of the Schedule to this Act, the following duties of customs—

- (a) in the case of tobacco not being an Empire product, duties at the rates respectively specified in the second column of that Schedule ; and
- (b) in the case of tobacco being an Empire product, duties at the rates respectively specified in the third column of that Schedule.

(2) In the said Schedule the expression “stripped tobacco” means tobacco of which the leaf is not complete by reason of the removal of the stalk or midrib or of some portion thereof, but tobacco shall not be deemed to be stripped tobacco solely by reason of its having been subjected to such process of butting as the Commissioners may allow.

(3) In this section the expression “Empire product” has the same meaning as in section five of the Act of 1919 as amended by any subsequent enactment.

(4) This section shall be deemed to have come into operation on the twenty-third day of April, nineteen hundred and forty-seven.

Relief for  
Isle of Man  
pensioners in  
respect of  
increase in  
tobacco duty.

2.—(1) The Governor may by regulations made with the consent of the Treasury provide—

- (a) for mitigating, in the case of Isle of Man pensioners satisfying the conditions of the regulations (whether as to age, class of pension or otherwise), the effect of the increase in the retail price of tobacco occasioned by the duties imposed by this Act ; and
- (b) for making up, out of sums received by the Commissioners on account of customs duties, the deficiency in the price received by persons supplying Isle of Man pensioners with tobacco in pursuance of the regulations.

(2) Regulations under this section may contain incidental and supplementary provisions and may in particular provide—

- (a) for preventing abuses of the provisions thereby made or of documents or tokens issued for the purposes thereof ;
- (b) for the issue of tokens through the Post Office, and for applying, with the necessary adaptations, as respects tokens all or any of the provisions (including penal provisions) of section sixty-five of the Post Office Act, 1908, as amended by any subsequent enactment, and of the following Acts of Tynwald, that is to say, the Public Offices (Fees) Act, 1888, and the Stamps Management Act, 1936 ; and
- (c) without prejudice to the last preceding paragraph, for the imposition of penalties (including customs penalties) in respect of any contravention of or failure to comply with the regulations, so, however, that no person shall by virtue of this paragraph be punishable otherwise than on summary conviction or be liable for any offence to imprisonment for a term exceeding three months or to a fine exceeding one hundred pounds.

(3) In this section the expression " Isle of Man pensioner " means a person to whom a pension has been awarded under an Act of Tynwald for the time being in force in the Isle of Man and relating to pensions.

(4) Regulations under this section may give effect to any arrangements made between the Treasury and the appropriate authority in the Isle of Man for co-ordinating any systems of relief for pensioners established respectively under any Act of the present Session relating to Finance and under this section so as to secure that they operate, to such extent as may be provided by the arrangements, as a single system.

Relief from  
duty on  
imported  
legacies, etc.

3. Where it is shown to the satisfaction of the Commissioners that any goods removed or imported into the Isle of Man on or after the tenth day of September, nineteen hundred and forty-six, were chattels belonging to or in the possession of a deceased

person which had been used before his death and were not at the time of his death used or held by him for business purposes, and that the removal or importation thereof was by or for a person resident in the Isle of Man who upon that death became entitled thereto by virtue of any testamentary disposition or intestacy, the Commissioners may remit or repay any customs duty which would otherwise be payable on the removal or importation thereof.

4. For the purposes of section four of the Act of 1933 (which empowers the Governor by order to make provision corresponding to any order of the Treasury made under section nine of the Finance Act, 1933, and varying the duties on artificial silk and articles made wholly or in part of artificial silk) the provisions of any Act of the present Session relating to Finance, being provisions reducing any of the said duties, shall be treated as having been effected by an order made by the Treasury under the said section nine, and any order of the Governor made by virtue of this section may have effect as from the date as from which the corresponding provision of the said Act relating to Finance has effect.

Extension of power to vary artificial silk duties.  
 23 & 24 Geo. 5.  
 c. 19.

5.—(1) Subject to the provisions of this section, the duties of customs imposed on goods removed or imported into the Isle of Man, being goods of the descriptions set out in the first column of the following Table by the respective enactments set out in the second column of that Table, shall continue to be payable until the first day of August, nineteen hundred and forty-eight :—

TABLE.

| Description of goods.                                                                           | Enactment imposing duty.                                                                                                                                                                                                           |
|-------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Ale and beer ... ..                                                                             | Section 1 of the Act of 1940.                                                                                                                                                                                                      |
| Cocoa ... ..                                                                                    | Section 4 of the Act of 1924.                                                                                                                                                                                                      |
| Hops and extracts, essences and other similar preparations (other than hop oil) made from hops. | Section 5 of the Act of 1925.                                                                                                                                                                                                      |
| Hop oil ... ..                                                                                  | Section 3 of the Act of 1929.                                                                                                                                                                                                      |
| Matches ... ..                                                                                  | Section 6 of the Act of 1940.                                                                                                                                                                                                      |
| Silk and artificial silk and articles made wholly or in part from silk or artificial silk.      | Section 7 of the Act of 1925, as amended by section 8 of the Act of 1926, section 9 of the Second Act of 1932, section 4 of the Act of 1933, section 3 of the Act of 1936, section 3 of the Act of 1937 and section 4 of this Act. |
| Spirits ... ..                                                                                  | Section 1 of the Act of 1943.                                                                                                                                                                                                      |
| Sweets ... ..                                                                                   | Section 3 of the Act of 1943.                                                                                                                                                                                                      |
| Tea ... ..                                                                                      | Section 5 of the Act of 1938.                                                                                                                                                                                                      |
| Wines ... ..                                                                                    | Section 2 of the Act of 1943.                                                                                                                                                                                                      |

(2) Where any enactment set out in the second column of the foregoing Table confers power on the Governor to make orders varying or repealing the duties of customs payable on the goods referred to in that enactment or imposing a new duty on such goods, the provisions of that enactment relating to the said power shall continue in force until the said first day of August, nineteen hundred and forty-eight, and the foregoing provisions of this section shall have effect subject to any orders made in pursuance of any such power (whether before or after the commencement of this Act) which are for the time being in force.

(3) This section shall be deemed to have come into operation on the first day of August, nineteen hundred and forty-seven.

Short title  
and repeal.

6.—(1) This Act may be cited as the Isle of Man (Customs) Act, 1947.

(2) Section four of the Act of 1943 is hereby repealed as from the twenty-third day of April, nineteen hundred and forty-seven.

SCHEDULE.

Section 1.

RATES OF DUTIES ON TOBACCO.

| Description of Tobacco.                                                              | Rates of duty per pound. |                  |
|--------------------------------------------------------------------------------------|--------------------------|------------------|
|                                                                                      | Non-Empire products.     | Empire products. |
|                                                                                      | £ s. d.                  | £ s. d.          |
| Tobacco unmanufactured—                                                              |                          |                  |
| containing 10 lbs. or more of moisture in every 100 lbs. weight thereof—             |                          |                  |
| unstripped ... ..                                                                    | 2 14 10                  | 2 13 3½          |
| stripped ... ..                                                                      | 2 14 10½                 | 2 13 3½          |
| containing less than 10 lbs. of moisture in every 100 lbs. weight thereof—           |                          |                  |
| unstripped ... ..                                                                    | 2 15 10                  | 2 14 1½          |
| stripped ... ..                                                                      | 2 15 10½                 | 2 14 1½          |
| Tobacco manufactured, viz.—                                                          |                          |                  |
| Cigars ... ..                                                                        | 3 4 5                    | 3 1 5½           |
| Cigarettes ... ..                                                                    | 3 0 4                    | 2 17 11½         |
| Cavendish or Negrohead ... ..                                                        | 2 19 4                   | 2 17 1           |
| Cavendish or Negrohead manufactured in bond ... ..                                   | 2 17 4                   | 2 15 4½          |
| Other manufactured tobacco ... ..                                                    | 2 17 7                   | 2 15 7½          |
| Snuff—                                                                               |                          |                  |
| containing more than 13 lbs. of moisture in every 100 lbs. weight thereof ... ..     | 2 16 10                  | 2 14 11½         |
| containing not more than 13 lbs. of moisture in every 100 lbs. weight thereof ... .. | 2 19 4                   | 2 17 1           |
| and so in proportion for any less quantity.                                          |                          |                  |